

STATE OF NEW YORK

8318--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. LASHER -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law, in relation to pro bono service by attorneys and candidates for admission to the bar

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 53 of the judiciary law, as
2 amended by chapter 450 of the laws of 1994, is amended to read as
3 follows:

4 3. The court shall prescribe rules providing for a uniform system of
5 examination of candidates for admission to practice as attorneys and
6 counsellors, which shall govern the state board of law examiners in the
7 performance of its duties. Such rules may require a candidate for admis-
8 sion to the bar to complete a certain number of hours of qualifying pro
9 bono service prior to filing an application for admission; provided,
10 however, that such qualifying pro bono service shall not include any
11 hours assisting in the provision of legal services required pursuant to
12 an agreement between the candidate for admission's supervisor or the
13 supervisor's law firm and the federal government under which the federal
14 government specifies the recipient or recipients or type or types or
15 nature of such legal services. The court shall not by its rules cause to
16 be barred from examination or, upon successful completion of the exam-
17 ination process, subsequent admission to the state bar, provided [~~he or~~
18 ~~she~~] the candidate shall otherwise meet any requirements for admission,
19 any person who is currently admitted to practice in the jurisdiction of
20 another state and has received a degree from a law school which quali-
21 fies such person to practice law in such state, other than a law school
22 which grants credit for correspondence courses, provided that such
23 person has been engaged in the actual practice of law in the state in
24 which they are admitted for no less than five years.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD11929-07-5

1 § 2. Subdivision 3 of section 468-a of the judiciary law, as added by
2 chapter 714 of the laws of 1981, is amended to read as follows:

3 3. The chief administrator shall prescribe the form in which such
4 registry of attorneys shall be maintained and the procedures for public
5 access thereto, and may make all such other rules and regulations neces-
6 sary and appropriate to implement and enforce the provisions of this
7 section. Such form may require an attorney to report the number of hours
8 of pro bono service completed by the attorney at the time the attorney
9 files a biennial registration statement; provided, however, that such
10 qualifying pro bono service shall not include any hours assisting in the
11 provision of legal services required pursuant to an agreement between an
12 attorney or the attorney's law firm and the federal government under
13 which the federal government specifies the recipient or recipients or
14 type or types or nature of such legal services.

15 § 3. The judiciary law is amended by adding a new section 484-a to
16 read as follows:

17 § 484-a. Compulsory legal services prohibited. No law firm employer in
18 the state of New York may require an employee to assist in the provision
19 of legal services provided pursuant to an agreement between the law firm
20 and the federal government under which the federal government specifies
21 the recipient or recipients or type or types or nature of such legal
22 services.

23 § 4. This act shall take effect on the one hundred eightieth day after
24 it shall have become a law. Effective immediately, the addition, amend-
25 ment and/or repeal of any rule or regulation necessary for the implemen-
26 tation of this act on its effective date are authorized to be made and
27 completed on or before such effective date.